

8.	26PR0193	ESTATE OF ROBERT MICHAEL KIELBORN
SPOUSAL PROPERTY HEARING		

ON THE COURT'S OWN MOTION DUE TO LACK OF JUDICIAL COVERAGE, THE COURT WILL HEAR THIS MATTER ON AUGUST 31, 2026, AT 8:30 A.M. IN DEPARTMENT NINE. THERE WILL BE NO HEARING ON AUGUST 17, 2026.

Petitioner is the surviving spouse of Decedent, who died intestate April 18, 2026, survived by Petitioner and two adult children. No petition to administer the estate has been filed.

Probate Code § 100(a) provides that “[u]pon the death of a person who is married or in a registered domestic partnership, one-half of the community property belongs to the surviving spouse and the other one-half belongs to the decedent.”

Probate Code § 6401(a) states: “As to community property, the intestate share of the surviving spouse is the one-half of the community property that belongs to the decedent under Section 100.”

Probate Code § 13500 provides that “when a spouse dies intestate leaving property that passes to the surviving spouse under Section 6401, . . . the property passes to the survivor . . . , and no administration is necessary.”

Probate Code 13650 authorizes a surviving spouse to file a petition requesting an order that administration of all or part of an estate is not necessary because all or part of the estate is property passing to the surviving spouse.

The Petition in this case identifies six assets as the subject of the Petition, including:

1. Marcus (by Goldman Sachs) High Yield Savings Account No. 8549 titled in the name of Decedent alone;
2. AMEX High Yield Savings Account No. 3961 titled in the name of Decedent alone;
3. Bank of America Adv Tiered Interest Checking Account No. 0600 titled in the name of Decedent alone;
4. Bank of America Advantage Savings Account No. 0845 titled in the name of Decedent alone;
5. Bank of America/Merrill Edge Account No. 3T95 titled in the name of Decedent alone;
6. Blue Jay Investors LLC titled in the name of Decedent and Petitioner, Limited Partner, 0.9195% membership interest; and
7. Blue Jay Investors Business LLC titled in the name of Decedent and Petitioner, Limited Partner, 1.0406% membership interest.

August 17, 2026
Dept. 9
Probate Tentative Rulings

Notice of the hearing on the Petition was served on Petitioner and Decedent's children and proof of service was filed with the court on July 7, 2026.

TENTATIVE RULING #8:

ABSENT OBJECTION THE PETITION IS GRANTED AS REQUESTED. ANY PERSON WHO HAS AN OBJECTION MAY MAKE IT ANY TIME, EVEN ORALLY AT THE HEARING (PROBATE CODE § 1043).

IF A PARTY OR PARTIES WISH TO APPEAR REMOTELY, INSTRUCTIONS FOR REMOTE APPEARANCES CAN BE FOUND ON THE COURT'S WEBSITE.